

STATE OF NEW YORK

3207--B

Cal. No. 392

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sens. KAVANAGH, ADDABBO, CLEARE, HARCKHAM, MARTINS, MAY, RHOADS, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public health law, in relation to establishing maximum contaminant levels and a hazard index in drinking water for certain per- and polyfluoroalkyl substances (PFAS)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 1112 of the public health law is amended by adding a new subdivision 12-a to read as follows:

12-a. a. The commissioner shall:

(i) modify the existing maximum contaminant level for perfluorooctane sulfonic acid (PFOS) and perfluorooctanoic acid (PFOA) to be no higher than 4 parts per trillion; and

(ii) establish a maximum contaminant level no higher than 10 parts per trillion (ppt) for perfluorononanoic acid (PFNA), perfluorohexane sulfonate (PFHxS), and hexafluoropropylene oxide dimer acid (HFPO-DA, also known as GenX).

b. The commissioner shall determine and report to the governor and the legislature by May first, two thousand twenty-eight, what additional requirements, if any, are warranted to address cumulative exposure to multiple per- and polyfluoroalkyl substances, including but not limited to, the substances listed in paragraph a of this subdivision.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 c. The commissioner shall require that public water systems comply
2 with the requirements of the maximum contaminant levels required by this
3 subdivision by May first, two thousand twenty-nine.

4 § 2. This act shall take effect one year after it shall have become a
5 law. Effective immediately, the addition, amendment and/or repeal of any
6 rule or regulation necessary for the implementation of this act on its
7 effective date are authorized to be made and completed on or before such
8 effective date.